something, there are two limits'. These two limits were as follows. First, that 'it is necessary to establish affirmatively that there is a case of emergency'. But second, and even more importantly, 'it is not for the executive, if I may so describe the Governor-General, to say there is an emergency; it must be proved; like any other question of fact lying at the root of the jurisdiction, it has to be established before the courts, in my humble submission'. This was not a novel plea. It happens all the time when 'facts' have to be established because, 'the courts in British countries are places where facts are decided' and '[a]t the root of the Governor General's right to make an Ordinance lies in every case the question of fact: "Was there an emergency?". If it becomes material to know whether there was an emergency or not, that is a matter which has to be proved before the court.' When Viscount Dunedin feigned incredulity and retorted with the question: 'What do you mean by "the Courts?"', Pritt tried to explain that the governor-general did not have an absolute power under Section 72 because, 'when it is looked at, there must be some limits to the word "emergency", and that he can only act within those limits'. Indeed, '[o]ne or two courts in India . . . have laid down expressly that is for the court to make up its mind and investigate the questions of fact whether there is an emergency or not . . .'.

Pritt asked for an opportunity to be granted a full hearing, 'if leave to appeal was granted', in which he could explain in detail what he meant by this, but this right was denied to him by a haughty, imperious and disdainful court. Eventually, he returned to the nature of the 'power' in question and reminded the board that 'it must be for the peace and good government of British India' but that 'this particular ordinance is a privilegium of a very terrible description' and that 'whether it could possibly conduce to peace is a matter of some difficulty . . .'. This is because, 'on the true construction of section 72 it is plainly intended to empower the governor general in cases of *general emergency* or cases of a *particular emergency* area', and neither was shown to have existed in this case. Pritt rounded off with a reminder to the judges that they should be in no doubt about the nature of the power in question here because it was one which 'in every Roman law country any